

# AUSTRALIAN E-BIKE REGULATIONS 2026

## National Compliance & Parental Liability Guide — All States & Territories

**NATIONAL STANDARD: 250W MAXIMUM · 25 KM/H MOTOR CUT-OFF · EN 15194 CERTIFICATION**

### QUICK COMPLIANCE CHECK

- ☐ Motor rated **250W or less**?
- ☐ Motor assist cuts out at **25 km/h**?
- ☐ **No throttle** above 6 km/h?
- ☐ **EN 15194** certificate or mark?
- ☐ Rider wearing an **approved helmet**?

All yes = road legal in all states.

### 1. UNIVERSAL RULES (ALL STATES)

- **250W Maximum:** Motor power must not exceed 250W on any public road or path.
- **25 km/h Cut-off:** Motor assistance must stop at 25 km/h in all jurisdictions.
- **No Throttle Cruising:** Throttle-only riding above 6 km/h is illegal nationwide.
- **EN 15194 Standard:** Required on all new e-bikes sold from Feb 2026 (NSW). Mandatory for all road use nationally from **1 Mar 2029**.
- **Over 250W = Motorcycle:** Requires registration, insurance and a licence. Riding without these is a criminal offence.
- **Helmet Required:** An approved bicycle helmet is mandatory in all states.

### 2. STATE-BY-STATE KEY DIFFERENCES

| State      | Footpaths       | Min Age | Key Note                                                                         |
|------------|-----------------|---------|----------------------------------------------------------------------------------|
| <b>NSW</b> | Adults: 10 km/h | None    | Seizure & crush powers (Mar 2026). Grace period for 500W bikes until 1 Mar 2029. |
| <b>VIC</b> | Under 13 only   | None    | Strictest footpath rule in Australia.                                            |
| <b>QLD</b> | 12 km/h cap     | 16+     | Seizure powers from 1 Jul 2026. Age 16 + learner's licence from 31 Aug 2026.     |
| <b>WA</b>  | Shared paths    | 16+     | Ride Safe inquiry (Dec 2025): WA leading national device-standards push.         |
| <b>SA</b>  | All ages        | None    | PMDs (e-scooters) legalised from 13 Jul 2025. PMD rules under review 2026.       |
| <b>TAS</b> | All ages        | None    | Mirrors national standard.                                                       |
| <b>ACT</b> | All ages        | None    | Extensive shared path network in Canberra.                                       |
| <b>NT</b>  | All ages        | None    | Mirrors national standard.                                                       |

### TYPICAL PENALTIES

**Unregistered Vehicle:** \$686–\$2,200+  
**Uninsured Vehicle:** \$686–\$5,500+  
**Unlicensed Rider:** Court attendance  
**Footpath (adult, NSW/VIC):** Up to \$2,200  
**Destruction Order:** Final — no return

Amounts vary by state. Check your state page for exact figures.

Police have active **seizure & crush** powers for non-compliant e-bikes (Mar 2026).  
Roadside **Dyno Units** verify the 25 km/h cut-off on the spot.  
500W bike owners: **grace period until 1 Mar 2029** only.

### FULL STATE-BY-STATE GUIDE



[australia-ebike-laws.netlify.app](https://australia-ebike-laws.netlify.app)

### 3. PARENTS: IS YOUR HOME AT RISK?

#### If an underage rider causes an accident on an illegal e-bike:

1. **NO INSURANCE:** Home policies exclude “unregistered motor vehicles.” Illegal e-bikes fall under this category.
2. **PERSONAL LIABILITY:** Parents can be sued for millions in medical costs and damages.
3. **ASSET LIQUIDATION:** Your house, savings and assets can be seized to pay legal debts.

## OFFICIAL STATUTORY REFERENCE

Road Rules 2014 (each state) | Road Transport Act 2013 (NSW) | Road Vehicle Standards Act 2018 (Cth)

*For educational purposes only. Always refer to your state's current legislation. Information current as at August 2026.*